

In T. 1599/09 and T. 235/15 the boards considered enteral feeding to fall under the meaning of the term "therapy". The alleviation of symptoms was considered to be therapeutic, especially in the case of tube feeding to alleviate a patient's inability to receive nutrition through a normal diet.

4.5.2 Methods with both therapeutic and non-therapeutic indications

Whether or not a claimed invention is excluded from patentability under Art. 53(c) EPC depends upon the wording of the claim in question (see T. 820/92, OJ 1995, 113; T. 290/86, OJ 1992, 414; T. 780/89, OJ 1993, 440 and T. 1077/93). As a general rule, it is irrelevant for the purposes of Art. 53(c) EPC whether there are other therapeutic effects in addition to the claimed non-therapeutic use if those additional therapeutic effects can be clearly distinguished from the non-therapeutic use and are not covered by the subject-matter of the claim. If, however, the scope defined by the wording of the claim encompasses a use comprising a non-therapeutic element which is inseparably associated with a therapeutic element and that latter element is an essential part of the claimed method, the method is non-patentable under Art. 53(c) EPC (T. 1635/09, OJ 2011, 542; T. 290/86, OJ 1992, 414).

a) Inevitable and inextricably linked therapeutic effect of the claimed method

In T. 116/85 (OJ 1989, 13) the board held that a claimed method was excluded from patentability, if it rendered the therapeutic treatment of animals necessary, even though the therapeutic treatment of animals was commonly an aspect of agriculture, and agricultural methods were in general potentially patentable subject-matter. Here, however, the board did not consider it possible as a matter of law to draw a distinction between such a method as carried out by a farmer and the same method when carried out by a veterinarian, and to say that the method, when carried out by a farmer, was an industrial activity and, when carried out by a veterinarian, was a therapeutic treatment and thus not patentable.

In T. 290/86 (OJ 1992, 414) the board held that the disclosed method of eliminating plaque was not considered allowable because it inevitably had the therapeutic effect of preventing caries and periodontal disease. The board took the view that whether or not a claimed invention was excluded from patentability under Art. 52(4) EPC 1973 depended in particular on the wording of the claim in question. If the claimed invention was not directed solely to a cosmetic effect, but was also necessarily defining a treatment of the human body by therapy as well, such a claim was excluded from patentability (distinguishing T. 144/83, OJ 1986, 301). The board held that if the claimed use of a chemical product inevitably always had a therapeutic effect as well as a cosmetic effect the invention as claimed necessarily defined a treatment of the human body (see also T. 475/12).

In T. 780/89 (OJ 1993, 440) the claim in question related to a method of general immunostimulation for animals which led, inter alia, to an increase in meat production. The board regarded the effect of increasing meat production as a consequence of the improvement in the animals' health. Moreover, the general stimulation of the immune system was integrally linked to the specific prophylactic function of safeguarding against

particular infections. The secondary effect of a therapeutic treatment did not render it patentable.

In T. 438/91 the patentee contended that the main purpose of the claimed process was to increase the weight of the animals which effect was separable from the effect of prevention or cure of scours. This latter was merely a beneficial side effect. The board found that, in the light of the patent disclosure, the two effects were linked by the single action of feeding the animals, and that the intention was to obtain both effects at the same time in animals suffering from scours (treatment by therapy) and to prevent the latter complaint in those animals which did not already have it (treatment by prophylaxis).

In T. 1077/93 the board held that a composition intended to protect the human epidermis against ultraviolet radiation and notably to reduce the intensity of erythema, recognised as the most spectacular form of damage to the skin by sunlight, and of skin-level cellular changes such as the formation of degenerated and necrotised keratinocytes, generally known by the term "sunburn cells (SBC)", was excluded from patentability. Citing the point, already explored in T. 820/92 (OJ 1995, 113), that the exclusion of therapeutic methods from patentability could not be avoided by a purely formal rewording of the claim to qualify the purpose of the process, in its indivisible entirety, as non-therapeutic, the board found that, since at least part of the protective effect did not derive from a simple filtering at the level of the skin surface, but rather from an interaction with the cellular mechanisms in the epidermis, the process had a genuine therapeutic effect.

T. 1635/09 (OJ 2011, 542) related to a method for oral contraception whereby the pathological side-effects were prevented or reduced. The board held that the prevention of side-effects – which was affirmed in claim 1 by the indication of the concentrations of active substance – was inseparably associated with the per se non-therapeutic contraceptive process. In such a case too, the exclusion from patentability under Art. 53(c) EPC could not be avoided even by limiting the claim to a "non-therapeutic use".

In T. 158/13 it was not possible to distinguish between a therapeutic or non-therapeutic use of the stimulative perfume composition, since the way of administering the composition was the same for a therapeutic and a non-therapeutic use. Sleepiness or inactivity in daily life may not only be a physiological condition, but may also arise from a pathological condition. Without a clear and unambiguous distinction between a physiological and a pathological nature of a person's mental condition, a clear distinction between therapeutic and non-therapeutic use is also impossible.

b) Therapeutic and non-therapeutic effects distinguishable

In T. 144/83 (OJ 1986, 301) was concerned with whether an appetite suppressant was being used to cause loss of weight or to cure obesity. The board pointed out that the language of the claim in question clearly covered a method of cosmetic use and was unrelated to the therapy of a human or animal body in the ordinary sense. The board held that the fact that a chemical product had both a cosmetic and a therapeutic effect when used to treat the human or animal body did not render the cosmetic treatment unpatentable.

In **T. 36/83** (OJ 1986, 295) the board held that, in the treatment of comedones, a distinction could be made between an antibacterial effect (therapeutic) and a cosmetic effect. The use of the term "cosmetic" was held to be sufficiently precise, although the cosmetic treatment according to the application might also incidentally involve a medical treatment.

In **T. 469/94** the board found that the claimed, non-therapeutic effect of choline and the therapeutic effect of choline were not inseparably linked or correlated but, on the contrary, were readily distinguishable because, first, they involved two undoubtedly distinct groups of persons (or patients), specifically, on one hand, patients known to have a muscular disease, muscular injury or epilepsy and, on the other hand, healthy persons who would receive no therapeutic benefit from the treatment. Second, the times necessary for appreciating the different effects (days for the therapeutic effect and minutes or hours for the non-therapeutic effect) would appear to be so different that no unwanted overlap of the therapeutic and non-therapeutic treatment could occur. Therefore, the board held that the claim in question was directed to a non-therapeutic method.

In **T. 1916/19** the claimed methods and uses related to providing an anti-microbial effect to skin. In the view of the examining division this inherently implied a prophylactic treatment of several diseases since skin disinfection will always remove pathogenic bacteria. However, the board held that there were at least some identifiable realisations of the method which were clearly non-therapeutic such as removing non-pathogenic bacteria responsible for unpleasant body odour.

4.5.3 Disclaimer for escaping the exception to patentability under Article 53 c) EPC

One way of escaping the exception to patentability is a disclaimer, but the claim featuring the disclaimer must then meet all the EPC requirements (see also in this chapter **I.B.4.4.5**). In **T. 774/89** the board accepted the patentability of using a medication to increase milk production in cows, because it was evident that the success of the treatment did not depend on the animals' state of health, and the insertion in the claim of the term "non-therapeutic" served as a disclaimer, excluding the therapeutic effects of the medication.

According to **T. 1635/09** (OJ 2011, 542), the following applies to claims encompassing both therapeutic and non-therapeutic uses: a disclaimer "non-therapeutic" allows for the exclusion of therapeutic uses from a claim encompassing both therapeutic and non-therapeutic uses in such a way that they are substantively separable, so that the remaining subject-matter is no longer covered by the exception to patentability under **Art. 53(c) EPC**. However, such a disclaimer cannot be employed to define as non-therapeutic a use which – like that at issue in this case – necessarily includes one or more therapeutic steps, since the question whether or not a claimed use is therapeutic can be decided only in the light of the activities carried out, or the effects achieved, in the course of that use.

In **T. 385/09** the addition of the disclaimer "non-therapeutic" was accepted by the board, even though the difference between a therapeutic and non-therapeutic application of the method was not explicitly explained in any other manner. However, the board was satisfied that the application did contain teaching of a method which might have been regarded as

therapeutic (cooling of cows in a heat stress), but also teaching of a method which was clearly not therapeutic (cooling of healthy cows for luring them to the milking stall).

In T 767/12 non-therapeutic and therapeutic methods for normalising infradian rhythm were considered indistinguishable. A disclaimer intended to restrict the claim to "non-therapeutic" methods was considered unallowable for lack of clarity under Art. 84 EPC (G 1/03, G 1/16) since it rendered the scope of the claim void.

4.6. Diagnostic methods

Under Art. 53(c) EPC diagnostic methods practised on the human or animal body are also excluded from patentability. However, the boards construe the exception applicable to diagnostic methods more narrowly than that applicable to surgical and therapeutic methods (G 1/04). In G 1/04 (OJ 2006, 334) the President of the EPO had referred fundamental questions relating to the interpretation of the term "diagnostic methods practised on the human or animal body" to the Enlarged Board of Appeal. The Enlarged Board of Appeal emphasised that its interpretation of the scope of the exclusion from patentability under Art. 52(4) EPC 1973 in respect of diagnostic methods practised on the human or animal body would remain valid under the EPC 2000.

4.6.1 Opinion G 1/04 and its application in case law

a) What constitutes "diagnostic methods"

In G 1/04 the Enlarged Board gave the term "diagnostic methods" a narrow interpretation: in order that the subject-matter of a claim relating to a diagnostic method practised on the human or animal body falls under the prohibition of Art. 52(4) EPC 1973, the claim is to include the features relating to: (i) the diagnosis for curative purposes *stricto sensu* representing the deductive medical or veterinary decision phase as a purely intellectual exercise, (ii) the preceding steps which are constitutive for making that diagnosis, and (iii) the specific interactions with the human or animal body which occur when carrying those out among these preceding steps which are of a technical nature.

The Enlarged Board of Appeal pointed out that the surgical or therapeutic nature of a method claim could be established perfectly by a single method step without contravening Art. 84 EPC 1973. Diagnostic methods, however, differed in this respect from the methods of surgery and therapy. The method steps to be carried out prior to making a diagnosis as an intellectual exercise were related to examination, data gathering and comparison. If only one of the preceding steps which were constitutive for making such a diagnosis were lacking, there was no diagnostic method, but at best a method of data acquisition or data processing that could be used in a diagnostic method (see T 385/86). It followed that, whilst the surgical or therapeutic nature of a method claim could be achieved by a single method step, several method steps were required to define a diagnostic method due to the inherent and inescapable multi-step nature of such a method.

These required method steps (G 1/04) consist of: (i) the examination phase involving the collection of data, (ii) the comparison of these data with standard values, (iii) the finding of

any significant deviation, i.e. a symptom, during the comparison, and (iv) the attribution of the deviation to a particular clinical picture, i.e. the deductive medical or veterinary decision phase.

In T 1255/06 the claim in question only defined the data acquisition steps (the temperature of the body) which could be used in a diagnostic method. Although the acquisition of the temperature data lead to the detection of a deviation from the normal values, it did not allow per se the attribution of the detected deviation to a particular clinical picture.

T 1232/15 related to the use of several adhesive and haptic strips for forming an aid for visually impaired people to enable line-by-line palpation of the breasts when performing a clinical breast examination. The board held that the claimed steps merely included the preparation of a diagnostic method to be performed by a visually impaired person, and that the steps constitutive for making the diagnosis were not included.

b) The criterion "practised on the human or animal body"

According to G 1/04 all method steps of a technical nature should satisfy the criterion "practised on the human or animal body", i.e. the performance of each and every one of these steps should imply an interaction with the human or animal body, necessitating the presence of the latter.

In G 1/04 the Enlarged Board of Appeal held that in a diagnostic method, the method steps of a technical nature belonging to the preceding steps which were constitutive for making the diagnosis for curative purposes *stricto sensu* must satisfy the criterion "practised on the human or animal body".

This criterion was to be considered only in respect of method steps of a technical nature. Thus, it did not apply to diagnosis for curative purposes *stricto sensu*, i.e. the deductive decision phase, which as a purely intellectual exercise could not be practised on the human or animal body.

Art. 52(4) EPC 1973 did not require a specific type and intensity of interaction with the human or animal body; a preceding step of a technical nature thus satisfied the criterion "practised on the human or animal body" if its performance implied any interaction with the human or animal body, necessitating the presence of the latter. If the preceding technical method steps were performed by a device, this did not satisfy the criterion "practised on the human or animal body" (G 1/04).

In T 1197/02 the invention related to a method of assessing the presence of glaucomatous damage to the visual system of a subject. The board explained that since the criterion "practised on the human or animal body" in Art. 52(4) EPC 1973 was to be considered only in respect of method steps which are of a technical nature (G 1/04, OJ 2006, 334, points 6.4.1 and 6.4.4 of the Reasons), it neither applied to the deductive decision phase, nor to those steps which consisted in comparing the data collected in the examination phase with standard values and in finding a significant deviation resulting from the comparison. These activities were principally of a non-technical nature and normally not